

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 1
Honorable Eunice Lee, Presiding
TBD, Courtroom Clerk
191 North First Street, San Jose, CA 95113

DATE: August 27, 2026 TIME: 9:00 A.M. and 9:01 A.M.

**To contest the ruling, call the Court at (408) 808-6856 before 4:00 P.M.
Make sure to also let the other side know before 4:00 P.M. that you plan to contest the ruling,
in accordance with California Rule of Court, Rule 3.1308(a)(1) and Local Rule 8D.**

****Please specify the issue to be contested when calling the Court and counsel****

LAW AND MOTION TENTATIVE RULINGS

9:01 A.M.			
<u>LINES</u> <u>1-2</u>	19CV360733	Edward Kellar et al vs Central Investments et al	Hearing: Order of Examination Parties to appear.

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9:00 A.M.

Calendar Line # 1

Case Name Capital One Bank (USA), N.A. vs Juan Campos

Case No. 17CV315304

Motion to Set Aside Default Judgment

I. BACKGROUND

This collection case stems from Defendant Juan Campos (“Campos”) owing Plaintiff Capital One Bank (USA) N.A. (the “Bank”) money lent in the principal amount of \$3,160.22. Plaintiff Bank filed a Complaint on or around August 24, 2017. No Answer was filed. Plaintiff filed a request for default judgment that was clerk approved on January 25, 2018 in favor of the Bank against Defendant Campos for \$3,455.22, compromised of \$3,160.22 in damages and \$295.00 in costs. (Default Judgment; Memorandum of Points and Authorities, p.1).

On December 29, 2025, Plaintiff filed this present motion to set aside and vacate default and default judgment and dismiss the action with prejudice under Code of Civil Procedure section 473. The motion was accompanied by a proof of service indicating mail service on that same day.

The motion is unopposed. Per Code of Civil Procedure section 1005(b) opposition papers were due on August 14, 2026. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of Court Rule 8.54(c)). Failure to oppose a motion leads to the presumption that the defendant has no meritorious arguments. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 489).

The Court has carefully reviewed the moving papers, notice of motion (totaling 2 pages); memorandum of points and authorities (totaling 2 pages); notice of nonappearance (totaling 1 page); Declaration of Laura D’Anna (totaling 2 pages); proof of service; and the pleadings.

II. LEGAL STANDARD

A. CODE OF CIVIL PROCEDURE SECTION 473(B)

Code of Civil Procedure section § 473(b) provides for both discretionary and mandatory relief. In terms of discretionary relief section 473(b), in pertinent part, reads as follows:

The court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect. Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken. . .

The mandatory provision of section 473(b) reads, in pertinent part, as follows:

Notwithstanding any other requirements of this section, the court shall, whenever an application for relief is made no more than six months after entry of judgment, is in proper form, and is accompanied by an attorney’s sworn affidavit attesting to his or her mistake, inadvertence, surprise, or neglect, vacate any (1) resulting default entered by the clerk against his or her client, and which will result in entry of a default judgment, or (2) resulting default judgment or dismissal entered against his or her client, unless the court finds that the default or dismissal was not in fact caused by the attorney’s mistake, inadvertence, surprise, or neglect.